

exceed six months.

When prisoner's life, or health will be endangered by remaining in jail, he may be removed by order of judge of circuit or county court. Duty of sheriff.

appropriate punishment, imprisonment shall be imposed only in the event of its non-payment, as provided in the preceding section.

§ 24. Whenever it shall be made satisfactorily to appear to any judge of the circuit court, or to the judge of the county court of the county, that the life of a prisoner confined in a county jail is endangered, or that his health will be seriously affected by remaining therein, such judge shall, by an order in writing, direct the sheriff or jailer to remove such prisoner to some suitable and safe place, as near as may be to the jail, and him there safely keep until his health be sufficiently restored to authorize his recommitment; to insure the safe keeping of such prisoner, the sheriff or jailer shall summon a sufficient guard to aid him day and night; and the guard, so summoned, shall be bound to attend under the penalty provided for disobedience in refusing to assist in conveying convicts to the penitentiary, and shall be entitled, for each day's service, to one dollar and twenty-five cents; and if the sheriff or jailer shall, negligently or voluntarily, suffer any prisoner to escape, during the time he shall be thus removed from the jail, he shall be guilty of an escape, in the same manner as if such prisoner shall have escaped from jail; and if such sheriff or jailer shall not recommit to the jail such prisoner, as soon as his health shall appear to have been sufficiently restored to render it prudent, he shall be guilty of a misdemeanor, and, on conviction, shall be fined not less than fifty, and not exceeding five hundred dollars.

Alias writ of *sci. fa.* returned "not found" will authorize final judgment on forfeited recognizance. Proviso.

§ 25. Where an original and *alias* writ of *scire facias*, issued upon a judgment *nisi*, rendered at the instance of the state, upon a forfeited recognizance, shall be returned "not found," such return shall be equivalent to the personal service of the process, and authorize the court in which the judgment, *nisi*, was rendered to make the same absolute: *Provided*, That such writs shall have been returned by the proper officer of the county, in which the forfeited recognizance shall have been entered into or acknowledged.

Indictments under this code good, for offences at common law, if &c. Words "force and arms" &c. not necessary.

§ 26. All indictments for offences inhibited in this code, which are offences at common law, shall be good, if the offence be charged or described according to the common law; and the party charged, on conviction, shall receive the punishment prescribed by this act, nor shall the words "force and arms," or "contrary to the form of the statute," be regarded as necessary in any indictment whatever; but indictments, wanting these words, shall be deemed as effectual, to all intents and purposes, as indictments having the same words in them.

Convict, sentenced by any court of this state or U. S., holding office under this state—office thereby vacated.

§ 27. Whenever any convict, sentenced by any court of this state or of the United States, to be punished by imprisonment in the penitentiary, shall, at the time of conviction and sentence, hold any office under the constitution and laws of this state, such office shall be deemed to be vacated from the time of his sentence to imprisonment in the penitentiary; and if the judgment against such convict shall be reversed, he shall be restored to his office, with all its rights and emoluments; but, if pardoned, he shall not, by reason thereof, be restored to his office.

Convict cannot be ex'r, adm'r, or guardian.

§ 28. The effect of a sentence of imprisonment in the penitentiary shall be to put an end to the right of such convict to execute the office of an executor, administrator or guardian, in the same manner as if such convict had been removed from such office, to extinguish all private trusts not susceptible of delegation by such convict; when the sentence of imprisonment shall be for life, the convict shall be deemed civilly dead; but such convict may make and pub-

Convict becomes civilly dead by sentence of imprisonment